

ELIZABETH II



1980 CHAPTER xxvi

An Act to authorise The Standard Life Assurance Company to carry on business in Canada under a French name; and for other purposes. [17th July 1980]

WHEREAS by a contract of copartnery bearing date 29th August 1825 and various subsequent dates certain persons therein named and designed and thereto subscribing formed themselves into a company under the name of "The Life Insurance Company of Scotland" for the purpose of carrying on the business of making or effecting assurances on lives and survivorships and of making or effecting other assurances connected with life, and of granting and selling annuities:

And whereas by the Standard Life Assurance Company's Act 1832 the name of the said company was changed to "The Standard Life Assurance Company" (hereinafter referred to as "the Company") and further powers were conferred on the Company:

And whereas by the Standard Life Assurance Company's Act 1910 the said contract of copartnery was annulled and the Company was incorporated as a company limited by shares:

And whereas by that Act and the Standard Life Assurance Company Order Confirmation Act 1919 further powers were conferred on the Company:

And whereas by the Standard Life Assurance Company's Act 1925 (hereinafter referred to as "the Act of 1925") the Standard Life Assurance Company's Acts 1910 and 1919 were repealed and

1976 c. vii.

the Company was reincorporated by the name and designation of The Standard Life Assurance Company with the objects, powers and privileges set forth in the Act of 1925 as amended by the Standard Life Assurance Company Act 1976:

And whereas the Company carries on its business in various parts of the world under the name and designation of The Standard Life Assurance Company:

And whereas to enable the Company to continue to carry on its business in Canada it is necessary that it should be authorised as hereinafter provided to do so under a name and designation in the French language in addition to the name and designation by which it is incorporated:

And whereas it is expedient that the other powers and provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows, that is to say:—

Short title
and citation.

1.—(1) This Act may be cited as the Standard Life Assurance Company Act 1980.

(2) This Act and the Standard Life Assurance Company Acts 1925 and 1976 may be cited together as the Standard Life Assurance Company Acts 1925 to 1980.

Interpretation.

2. In this Act—

1925 c. xlii.

“ Act of 1925 ” means the Standard Life Assurance Company's Act 1925; and

“ Company ” means The Standard Life Assurance Company.

French name.

3.—(1) Notwithstanding anything in the Act of 1925 the Company shall have power to carry on business in Canada in the name and designation of either “ The Standard Life Assurance Company ” or “ Compagnie d'assurance Standard Life ” or in both of the said names and designations.

(2) Any policy, deed or other writing relating in whole or in part to the Company's business in Canada to which the Company is a party shall be equally binding whether the Company contracts in the name and designation of “ The Standard Life Assurance Company ” or of “ Compagnie d'assurance Standard Life ” or in both of the said names and designations.

(3) Any action, suit, reference, arbitration or other proceeding by or against the Company in connection with the Company's business in Canada shall be equally enforceable by or against the Company whether raised by or against the Company in the name and designation of "The Standard Life Assurance Company" or of "Compagnie d'assurance Standard Life" or in both of the said names and designations.

4. Without prejudice to any of the provisions of the Act of Canadian seal. 1925 the Company may have for use in relation to the business of the Company in Canada two seals, one of which shall be a facsimile of the common seal of the Company, save only that on the face thereof there shall be substituted for the name of the Company the name of the Company in French, namely "Compagnie d'assurance Standard Life" with the addition of the word "Canada" and the other of which shall be a facsimile of the common seal of the Company, save only that on the face thereof there shall be both the name of the Company and the name of the Company in French with the addition of the word "Canada" and in relation to the business of the Company carried on in Canada the Act of 1925 shall be read and have effect as if the expression "common seal of the Company" included each of the seals authorised by this section.

5. All costs, charges and expenses preliminary to and of and Costs of Act. incident to the preparing for, obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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